

PETITION - ASK A NORTH DAKOTA COURT TO SEAL A DUI RECORD

IN THE COURT

(Clerk of Court of the court holding the DUI case - see the filing instructions in this packet)

IN RE: Maria-Alejandra O'Shaughnessy-Whitfield,
PETITIONER.

Case number, if the court assigns one at filing:

.....

PETITION TO SEAL A DRIVING UNDER THE INFLUENCE RECORD (N.D.C.C. Sec. 39-08-01.6)

The petitioner, Maria-Alejandra O'Shaughnessy-Whitfield, applies to this court under N.D.C.C. Sec. 39-08-01.6(1); N.D.C.C. Sec. 39-08-01.6(2); N.D.C.C. Sec. 12.1-32-07.1; N.D.C.C. Sec. 12.1-32-07.2; N.D.C.C. Sec. 39-08-01; N.D.C.C. Sec. 39-06.2-10 and states:

A. THE RELIEF THIS PETITION ASKS FOR, AS THE COMMITTED RECORD STATES IT

The court shall seal a criminal record relating to a conviction under N.D.C.C. Sec. 39-08-01, in accordance with Sec. Sec. 12.1-32-07.1 and 12.1-32-07.2, where the individual has not committed a further violation of Sec. 39-08-01 or an equivalent ordinance, or any other criminal offence, within seven years of the first violation. The seal is the Sec. 12.1-32-07.2(2) restricted-access regime: the records may be examined by the clerk, a judge, the juvenile commissioner, probation officers, the defendant or defence counsel and the state's attorney, and by others only on the written order of a judge. A prosecutor retains access to a prior offence for enhancement under Sec. 39-08-01(3).

B. THE PETITIONER

Date of birth: 1968-12-31

C. THE FACTS OF THIS MATTER, WHICH THE PETITIONER SUPPLIES FROM THE RECORD

Each item below is printed in the words the committed record uses for it. Fill each one from the record itself.

[C1 - dui first violation date] On what date did your first impaired-driving violation occur?

.....

.....

[C2 - dui case number] What is the case number?

.....

.....

[C3 - dui court type] Was the case in district court or municipal court?

.....
.....

[C4 - dui county] Which North Dakota county or municipality?

.....
.....

[C5 - dui conviction type] Did you plead guilty, plead no contest, or were you found guilty?

.....
.....

[C6 - dui charged under] Were you charged under the state statute or under a city ordinance?

.....
.....

[C7 - dui ordinance citation] If it was a city ordinance, which ordinance?

(Asked where the participant reports an ordinance charge, because the equivalence has to be shown.)

.....
.....

[C8 - dui subsequent dui] Have you had any further impaired-driving violation within seven years of that first one?

.....
.....

[C9 - dui other offence] Have you committed any other criminal offence within that seven-year period?

.....
.....

[C10 - dui commercial licence] Have you ever held a commercial driver's licence, now or in the past?

.....
.....

D. THE REQUEST

The petitioner asks the court to grant the relief described in paragraph A, under N.D.C.C. Sec. 39-08-01.6(1); N.D.C.C. Sec. 39-08-01.6(2); N.D.C.C. Sec. 12.1-32-07.1; N.D.C.C. Sec. 12.1-32-07.2; N.D.C.C. Sec. 39-08-01; N.D.C.C. Sec. 39-06.2-10.

DATE SIGNATURE OF PETITIONER

(The petitioner signs and dates this petition personally. Nothing on this page is signed or dated for the petitioner.)

PRINTED NAME: Maria-Alejandra O'Shaughnessy-Whitfield

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Route: obligation:track-pathway:ND:nd-dui-record-seal:dui-record-sealing-under-the-separate-dui-statute

PROPOSED ORDER - ASK A NORTH DAKOTA COURT TO SEAL A DUI RECORD

IN THE COURT
(Clerk of Court of the court holding the DUI case)

IN RE: Maria-Alejandra O'Shaughnessy-Whitfield,
PETITIONER.

Case number, if one was assigned:
.....

PROPOSED ORDER

This matter came before the Court on the petition of the petitioner under N.D.C.C. Sec. 39-08-01.6(1); N.D.C.C. Sec. 39-08-01.6(2); N.D.C.C. Sec. 12.1-32-07.1; N.D.C.C. Sec. 12.1-32-07.2; N.D.C.C. Sec. 39-08-01; N.D.C.C. Sec. 39-06.2-10. The Court, having considered the petition and anything filed with it,

ORDERS that

(EVERY DECISION ON THIS PAGE IS THE COURT'S. This proposed order travels with the petition for the Court's convenience; nothing on it is completed, decided, signed or dated by the petitioner or by this packet.)

DATED

.....
(The court signs here if, and only if, it grants the petition.)

Route: obligation:track-pathway:ND:nd-dui-record-seal:dui-record-sealing-under-the-separate-dui-statute

FILING INSTRUCTIONS - ASK A NORTH DAKOTA COURT TO SEAL A DUI RECORD

This page is for Maria-Alejandra O'Shaughnessy-Whitfield.

WHAT THIS SET OF PAPERS IS

Petition to Seal a Driving Under the Influence Record (N.D.C.C. Sec. 39-08-01.6).

The court shall seal a criminal record relating to a conviction under N.D.C.C. Sec. 39-08-01, in accordance with Sec. Sec. 12.1-32-07.1 and 12.1-32-07.2, where the individual has not committed a further violation of Sec. 39-08-01 or an equivalent ordinance, or any other criminal offence, within seven years of the first violation. The seal is the Sec. 12.1-32-07.2(2) restricted-access regime: the records may be examined by the clerk, a judge, the juvenile commissioner, probation officers, the defendant or defence counsel and the state's attorney, and by others only on the written order of a judge. A prosecutor retains access to a prior offence for enhancement under Sec. 39-08-01(3).

WHERE IT GOES

Clerk of Court of the court holding the DUI case

Filed in the existing case. The official research guide directs the participant to file the petition and any accompanying documents in the DUI case with the clerk of court.

Venue: The existing impaired-driving case, in the municipal court or district court where it is filed.

WHAT IT COSTS, AND WHETHER A WAIVER EXISTS

Fee as recorded: none stated by the section, and none appears in the statewide court fee schedule. Fee

waiver as recorded: not applicable; no fee is identified.

WHO MUST BE SERVED

Service as recorded: None required by the section. Notice as recorded: None required by the section.

WHAT THE RECORD SAYS YOU MUST KNOW

- Expungement of DUI records is not available in North Dakota. This is sealing under the Sec. 12.1-32-07.2(2) restricted-access regime, and a prosecutor keeps access to the prior offence for enhancement under Sec. 39-08-01(3).

WHEN TO STOP AND GET HELP INSTEAD OF FILING

- Any commercial driver's licence, current or historical, which the section excludes.
- Any criminal offence at all inside the seven-year window.
- Uncertainty whether the charge was under the state statute or an equivalent ordinance.
- A participant who expects the record to be expunged rather than sealed, which North Dakota does not offer for DUI.

- A prosecutor's retained enhancement access, where the participant expects it to be gone.
- An out-of-state impaired-driving conviction.
- No hearing is required, but the official guide records that the judge may hold one.

THE PAGES IN THIS SET

- nd-dui-record-seal-primary-filing-1: the composed petition, on this route's own statutory ground (Ask a North Dakota court to seal a DUI record)
- nd-dui-record-seal-proposed-order-2: the proposed order the court may sign; every decision line is the court's and is left blank (Ask a North Dakota court to seal a DUI record)

Route: obligation:track-pathway:ND:nd-dui-record-seal:dui-record-sealing-under-the-separate-dui-statute